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Provision of April 11, 2024
Register of provisions
No. 200 of September 11, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the report of the Local Police of the Municipality of
Ancona – Section of Commercial and Market Police – which reports on a control carried out on August
12, 2022, at the public establishment named "Piramide della Frutta" located in Ancona, Via G. Bruno
20/D, where the presence of a video surveillance system consisting of 4 functioning cameras was
verified, in the absence of appropriate informational signs regarding the presence of the cameras;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The report received and the initiation of the procedure.

By note dated September 15, 2022, the Local Police of the Municipality of
Ancona – Section of Commercial and Market Police – transmitted to this Authority the report of the
control carried out on August 12, 2022, by the aforementioned Police Body, at the public establishment
named "Piramide della Frutta" located in Ancona, Via G. Bruno 20/D, whose owner is the individual
enterprise "Piramide della Frutta di Ghanam Ehab", where the presence of a functioning video
surveillance system and the absence of appropriate informational signs regarding the presence of the
cameras were verified.

The Office, by note dated January 11, 2022 (prot. No. 3948), therefore proceeded to notify the data
controller of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the
Code in relation to the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.
Although informed of the possibility of submitting defensive writings or documents in relation to the
sanctioning procedure against him, the data controller did not submit any documentation in this regard.

2. The legal framework of the processing carried out

The use of video surveillance systems can result, depending on the positioning of the cameras and the
quality of the images captured, in the processing of personal data. Such processing must be carried
out in compliance with the general principles contained in Article 5 of the Regulation and, in particular,
the principle of transparency, which presupposes that "data subjects must always be informed that
they are about to enter a video-surveilled area."

For this purpose, the data controller must place appropriate informational signs according to the
indications contained in point 3.1. of the provision regarding video surveillance - April 8, 2010
[1712680] (in this sense, also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the data controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level). The guidelines also provide that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information should be adapted to the various locations.”

The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the surveilled area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it emerged that the video surveillance system installed at the public establishment named “Piramide della Frutta” located in Ancona, Via Marconi 87 was active and functioning, and that no sign bearing the information required by Article 13 of the Regulation had been posted.

In this case, it is therefore established that personal data processing was carried out through a video surveillance system, in the absence of the required information.

The processing of personal data carried out by the Enterprise through the video surveillance system is therefore unlawful, in

terms as stated, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

The processing of personal data carried out by the individual enterprise “Piramide della Frutta di Ghanam Ehab” is therefore unlawful, as stated, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation.

The violation established in the terms outlined in the reasoning cannot be considered “minor,” taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).

As a result of the investigation and the established unlawfulness of the conduct as described above, it must therefore:

- be ordered to the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to proceed with the application of suitable signs bearing information on the processing as indicated in point 2 of this provision;
- an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative pecuniary sanction.

5. Injunction Order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as stated, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, taking into account that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;

- the absence of specific previous violations against the aforementioned individual enterprise related to breaches of data protection regulations;
- the circumstance that the data controller did not cooperate with the Authority during the proceedings nor demonstrated compliance with the legal obligation.

It is also believed that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €1,000.00 (one thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by the individual enterprise "Piramide della Frutta di Ghanam Ehab," through the use of the video surveillance system installed at the commercial establishment named "Piramide della Frutta di Ghanam Ehab," located at Via Marconi 87, of which Mr. Ghanam Ehab is the owner, in the terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

ORDERS

the individual enterprise "Piramide della Frutta di Ghanam Ehab" VAT No. 11173601003, to pay the sum of €1,000.00 (one thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

the same individual enterprise to comply, pursuant to Article 58, paragraph 2, letter d) of the Regulation, with the processing of data carried out in accordance with the provisions of the Regulation, with reference to the placement, where it has not already done so, of suitable informational signs regarding the presence of cameras;

the same individual enterprise "Piramide della Frutta di Ghanam Ehab" to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, comma 8 of the Code, the option for the offender to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline referred to in art. 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in art. 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this decision be communicated and that adequately documented feedback be provided in accordance with art. 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in art. 83, paragraph 5, letter e) of the Regulation.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code, and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority,

under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Messina, April 11, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ginevra Cerrina Feroni

THE SECRETARY GENERAL

Mattei